

Addendum to Contract for Residential Sale and Purchase



1 If initialed by all parties, the terms below will be incorporated into the Contract for Residential Sale and Purchase
2* between _____ ("Seller")
3* and _____ ("Buyer")
4* concerning the Property described as _____
5* _____

6* (____) (____) - (____) (____) **E. Back-up Contract; Kick-out Clause: (Check whichever applies)**

- 7* 1. ☐ **Back-up Contract:** This back-up Contract is subject to the termination of a prior executed contract between
8 **Seller** and a third party for the sale of the Property. If **Seller** terminates the prior executed contract and
9* **Seller** delivers written notice of the termination to **Buyer** before 5:00 p.m. on _____, this
10 contingency will be removed and this back-up Contract will move into first position. The "Effective Date" of this
11 back-up Contract will be the date **Seller** delivers written notice of the termination of the prior executed contract.
12 If **Buyer** does not receive notice of the prior executed contract's termination by the date above, **Buyer** may
13 cancel this back-up Contract by delivering written notice to **Seller** within 3 days after the date above; and
14* **Buyer's** deposit(s) will be refunded. ☐ **Buyer** may cancel this back-up Contract by delivering written notice to
15 **Seller** before the date **Seller** delivers written notice of the termination of the prior executed Contract.
- 16* 2. ☐ **Kick-out Clause:** **Seller** has the right to continue to show the Property and solicit and enter into bona fide
17 back-up purchase contracts with third parties that are subject to the termination of this primary Contract.
18 Upon entering into a back-up contract, **Seller** will give **Buyer** a copy of the back-up contract with the
19 third parties' identification and purchase price information obliterated. To continue with this primary Contract,
20* **Buyer** must make an additional deposit of \$_____ within 72 hours (to be computed as consecutive
21 hours, not business days) from receipt of the back-up contract. By giving the additional deposit to the Escrow
22 Agent within the 72-hour period, **Buyer** waives all contingencies for financing and sale of **Buyer's** property and
23 the parties will close on the Closing Date. The additional deposit will be credited to **Buyer** at Closing. If **Buyer**
24 fails to timely make the additional deposit, this primary Contract will terminate; and **Buyer's** deposit(s) will be
25 refunded.